

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

SUPPLEMENTAL MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Response to Respondents’ Motions for Summary Decision (“Response Brief”) and Complainant’s Response to Respondents’ Statements of Material Facts and Complainant’s Supplemental Statement of Undisputed Material Facts (“IMCC Supplemental SUMF”).

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding.

On May 27, 2022, IMCC filed a Motion for Confidential Treatment requesting confidential treatment for portions of the Response Brief and the IMCC Supplemental SUMF and continued confidential treatment for certain documents in the Appendix exhibits that have been designated as Confidential or Confidential Outside Counsel Eyes Only (“OCEO”) by IMCC, the Respondents, or non-parties pursuant to the Order. The May 27 Motion described the categories of information and documents for which confidential treatment was requested.

On June 2, 2022, Respondents’ counsel designated additional information as confidential under the Order. Those additional designations are highlighted in green in the accompanying Response Brief and IMCC Supplemental SUMF. Accordingly, IMCC respectfully submits this Supplemental Motion for Confidential Treatment. Respondents consent to both the May 27 Motion and this Supplemental Motion.

Pursuant to Rule 502.5(b), IMCC is providing with this Supplemental Motion the confidential version of the Response Brief and the IMCC Supplemental SUMF, which incorporate Respondents’ new designations. The information IMCC seeks permission to redact in the public version of the Response Brief and the IMCC Supplemental SUMF is highlighted, including images.

Respectfully submitted,

DATED: June 2, 2022

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CERTIFICATE OF SERVICE

I certify that, on June 2, 2022, a true and correct copy of the foregoing Supplemental Motion for Confidential Treatment and the attachments thereto were filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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